ARCHIVE DRAFT · HOLD FOR ARYEH'S YES

Remorse for the Past, Resolve for the Future: The Blessing Before the Seal

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The Daily Learning Portions

- **Chumash:** Parshat Vezot Haberacha, 1st aliyah — Devarim 33:1–33:7
- **Tehillim:** Chapters 49–54 (Tishrei extra chapters per Hayom Yom / Baal Shem Tov custom: 112–114)
- **Tanya:** Iggeret HaKodesh, middle of Epistle 20
- **Rambam (3 ch.):** Hilchot Kelim 3–5
- **Rambam (1 ch.):** Hilchot Ishut 24
- **Sefer HaMitzvot:** Positive Commandment 107 — ritual impurity contracted through a human corpse (*tum'at met*)
- **Hayom Yom:** Tishrei 9, Erev Yom Kippur — *kaparot* (nine rotations); no *tachanun* through the end of Tishrei; *malkot* with *V'hu rachum* three times; **on Erev Yom Kippur the avodah is remorse for the past; on Yom Kippur — resolve for the future**
- **Seasonal overlay (not a replacement of the daily cycle):** Erev Yom Kippur: *kaparot*; two festive meals (Talmud: whoever eats and drinks on the ninth is credited as if he fasted the ninth and the tenth); *mikveh*; *lekach*; symbolic *malkot*; *Al Chet* after Minchah; 26-hour candle; Yizkor candle before holiday candles; Kol Nidrei at sundown; extra Tehillim of Elul-through-Yom-Kippur still in force (remaining chapters completed on Yom Kippur); Psalm 130 and *Avinu Malkeinu* by day; no *tachanun*

Seasonal frame. Shabbat Shuva, Saturday 19 September 2026, set the heart and walked discreetly. The fifth letter of *teshuvah* was *Heh*: piety that does not need to be seen. The song of Haazinu closed in public. Two offices stood on one Sabbath. A land was seen and not entered.

Today the cycle does not linger at the grave of the speaker. It opens the blessing he gave before his death. *Vezot habrachah* — and this is the blessing. Rashi, from Sifrei: very close to the time of his death, that if not now, when? Erev Yom Kippur is that sentence in calendar form. If not now, when?

Elul trained a meeting in the Field. Rosh Hashanah seated the King. The Ten Days are the nearness of which Isaiah spoke: *dirshu Hashem b'himatz'o*. The ninth day is not a vestibule to be rushed. It is itself a commanded feast of return. The Talmud (Yoma 81b; Rosh Hashanah 9a) reads "you shall afflict your souls on the ninth of the month at evening" and concludes: whoever eats and drinks on the ninth is regarded as if he fasted on the ninth and the tenth. The last weekday table of 5787's first ten days is not a concession to the body. It is avodah.

Hayom Yom places, on that table, the day's entire architecture in one line. On Erev Yom Kippur the avodah is *charatah* on the past. On Yom Kippur — *kabbalah* for the future. Remorse that never becomes resolve is unfinished. Resolve that skips remorse is unrooted. The two days are one covenant with a hinge at sundown.

The first aliyah of the last parsha of the Torah is not accidental company for that hinge. Moses blesses before he dies. The Holy One is named as the One who came toward a people who would take the fire. Torah is declared an inheritance of a congregation, not a private find. There is a King in Jeshurun when the heads gather and the tribes are one. Reuben is told to live and not die. Judah is told that his voice will be heard and his hands will contend. A house can carry all five sentences to Minchah.

I. The First Aliyah: Blessing Before Death, King in Jeshurun, Live and Not Die

> *"And this is the blessing with which Moses, the man of G-d, blessed the children of Israel before his death." (Devarim 33:1)*

Rashi, Sifrei: very close to his death — if not now, when? The title *ish haElokim* is not ornament. The man who struck the rock and was barred from the land still has a mouth that can bless. Limited office does not cancel last responsibility. A leader who can no longer enter can still confer. Erev Yom Kippur needs that grammar before Kol Nidrei. The year is not asked to pretend that every door is still open. It is asked to bless with the doors that remain.

Ibn Ezra and Ramban both mark the contrast with the song. Haazinu was witness and warning. Vezot Haberacha is gift. The same speaker does not finish as accuser. He finishes as father. The ninth of the Ten Days can use the sequence without forcing it. *Charatah* looks backward the way the song looked backward. *Brachah* looks forward the way resolve will look forward after the hinge. The Torah refuses to leave Israel with only the song.

> *"And he said: The Lord came from Sinai, and dawned from Seir upon them; He shone forth from Mount Paran, and He came from the midst of ten thousands of holy ones; from His right hand a fiery law for them." (33:2)*

Rashi: Moses begins with praise of the Omnipresent, and the praise itself is Israel's merit. He came out to meet them like a groom toward a bride. He offered the Torah first to Esau at Seir and to Ishmael at Paran; they refused; He came to Israel. He did not bring all His hosts, unlike a mortal who displays his whole treasury at a wedding. The law was black fire on white fire, given from the right hand.

The Elul image of the King in the Field is not cancelled by the seated King of Tishrei. The verse remembers a coming-toward that preceded any throne-room. Sinai is not only legislation. It is approach. Erev Yom Kippur is the last daylight in which that approach is still named as history rather than only as liturgy. He came. They stood. Fire was placed in a right hand that does not dominate by spectacle.

The refusals of Seir and Paran are not a taunt at the nations for their own sake. They are Israel's reminder that *bechirah* is real. A law that could not have been refused is not a covenant. A return that could not have been withheld is not teshuvah. The ninth day stands inside that same freedom. The gates are open. They are not automatic.

> *"Indeed, He loves the peoples; all His holy ones are in Your hand; they were placed at Your feet; he bears Your utterances." (33:3)*

Rashi gathers the readings. He showed affection to the tribes, each called a people. The souls of the righteous are bound with Him in the bundle of life. Israel stationed themselves at the foot of the mountain and took the yoke. Even when affection seemed to run toward the nations and Israel was delivered into their hand, the holy ones clung, and He guarded them, and they accepted the decrees.

"All His holy ones are in Your hand" is not a metaphor to be admired and left. It is the legal comfort of Erev Yom Kippur and the legal warning. The soul is not ownerless. It is held. A *cheshbon* that treats the self as unheld property has not read the verse. A *cheshbon* that treats the self as already confiscated, with no remaining will, has not read "they bear Your utterances." Held, and still bearing. Owned, and still choosing.

> *"Moses commanded us a Torah, an inheritance of the congregation of Jacob." (33:4)*

Rashi: we have taken hold of it and will not forsake it. The verse is among the first sentences a Jewish child is taught. It is not childish. *Morashah* is not a private discovery and not an imperial grant. It is an estate that belongs to a *kehillah*. No one in the congregation is without title. No one in the congregation holds title alone.

Covenantal liberty lives in that grammar without strain. Law that is inherited cannot be the passing will of a present majority. Law that belongs to a congregation cannot be the possession of a priestly caste. Free will is the ground of both taking-hold and forsaking. The ninth day asks only the first of those two. Take hold again before sundown.

> *"And He was King in Jeshurun, when the heads of the people were gathered, the tribes of Israel together." (33:5)*

Rashi: the yoke of His kingship is always upon them. They are worthy when their heads assemble. Another reading, from Sifrei: when Israel is gathered in unity, He is King in their midst — not in strife.

This is the day's political theology, and it is not imported. Limited sovereignty under higher law is already the verse. There is a King. The King is not a man who has seized the row. The King is present when heads gather and tribes are one. Strife does not dethrone Him in heaven. It refuses His kingship on earth. Erev Yom Kippur is a gathering before it is a fast. The meals, the *mikveh*, the asking of *lekach*, the walking to shul before Kol Nidrei — these are how a people assembles its heads without a parade.

A republic that cannot gather its heads without contempt has not learned Jeshurun. A congregation that gathers and will not be one has not learned it either. The verse does not require unanimity of taste. It requires a together that can bear a King.

> *"May Reuben live and not die, and may his men be numbered." (33:6)*

Rashi: live in this world, and not die in the world to come — that the incident of Bilhah not be remembered against him. And let his men be counted among the brothers, as "the sons of Jacob were twelve" despite the incident.

The ninth day does not need a homily invented for the verse. The verse is already the prayer of Erev Yom Kippur. *Yechi Reuven v'al yamot.* Live. Do not die. Let the failure be confessed and not become the last name. Reuben was the firstborn who lost first rank and did not lose the count. Judah is placed next, Rashi says, because both confessed. Confession is not collapse. It is how a name stays in the number.

> *"And this for Judah. And he said: Hear, O Lord, the voice of Judah, and bring him to his people; his hands shall contend for him, and You shall be a help against his adversaries." (33:7)*

Rashi: Judah is set beside Reuben because both confessed. Judah's bones rolled in the coffin forty years for the vow he had placed on himself; Moses asks that he be brought to his people — that the bones rest, and that he be gathered to the brothers in the camp. His hands contend. You be the help.

The last verse of the aliyah is a liturgy the house can use without adding a word. Hear the voice. Bring him to his people. The hands will do what hands can. Help will have to come from elsewhere. Erev Yom Kippur is not a day on which a man is asked to pretend that his hands are enough. It is a day on which the hands are required, and help is requested in the same breath. *Hishtadlut* and *bitachon* are not two sermons. They are 33:7.

II. Tehillim 49–54, and the Extra 112–114

The daily cycle for the ninth of a month is already a file for the eve of a seal.

Psalm 49: "Why should I fear in days of evil, when the iniquity of my heels surrounds me?" A brother cannot redeem a brother; he cannot give to G-d his ransom. Wisdom and honor do not follow a man down. The psalm is not contempt for means. It is the refusal to install means as *kofer*. Erev Yom Kippur eats a feast and will not let the feast become ransom. The ninth is credited as a fast because it is obedience, not because the table purchases the tenth.

Psalm 50: "G-d, G-d the Lord, has spoken and called the earth." He comes and is not silent. "What have you to do to recount My statutes, and that you have taken My covenant in your mouth?" Thanksgiving is the sacrifice that is asked. The seated King of Tishrei is already in this psalm. A mouth that carries covenant and does not do it is named before Minchah so that *Al Chet* will not be surprised.

Psalm 51: "When Nathan the prophet came to him, after he had come to Bathsheba." "Have mercy upon me, O G-d, according to Your lovingkindness… Wash me thoroughly… For I know my transgression… Create me a clean heart, O G-d, and renew a steadfast spirit within me… The sacrifices of G-d are a broken spirit; a broken and crushed heart, O G-d, You will not despise."

This is the psalm the ninth day was waiting for. David does not negotiate the record. He asks for washing, for a new creation of the heart, for a spirit that will stand. *Charatah* has a text. It is not a mood of self-loathing. Self-loathing still orbits the self. Psalm 51 orbits mercy, truth in the inward parts, and a mouth that will teach transgressors after it has been opened. Resolve is already germinating inside the remorse: "I will teach transgressors Your ways." Yom Kippur's *kabbalah* is not a different man. It is this man facing forward.

Psalm 52: Doeg the Edomite. The tongue that loves evil more than good. The righteous will see and fear. Erev Yom Kippur is a day of speech-law. Kol Nidrei will deal with vows. Psalm 52 deals with the tongue that does not need a vow in order to wound. *Charatah* that confesses only the large public sins and leaves the tongue unexamined has not opened the day's *Tehillim*.

Psalm 53: the *naval* who says in his heart there is no G-d. A ninth-day *cheshbon* that stays at the level of technique — how to get through the fast, how to time the meal — and never asks whether the heart has said "there is no Judge," has stopped at the kitchen.

Psalm 54: "When the Ziphites came and said to Saul, Does not David hide with us?" "O G-d, by Your Name save me." The last of the daily set is help requested by Name, not by résumé. 33:7 and 54 are the same sentence from two sides.

The extra three of the Baal Shem Tov's custom, listed by Hayom Yom for this date, are 112–114.

Psalm 112: fortunate is the man who fears the Lord, who delights greatly in His commandments. His children will be mighty in the land. Good will is spread for the poor. A light is sown for the righteous. Chinuch is in the extra psalm, not as a program but as a consequence. The house that fears and delights becomes a place where children can be mighty without being hard.

Psalm 113: from the rising of the sun to its setting, the Name is to be praised. He raises the poor from the dust. Erev Yom Kippur runs from a morning *kaparot* to a sunset Kol Nidrei. The psalm already writes the span.

Psalm 114: when Israel went out of Egypt, Judah became His sanctuary, Israel His dominions. The sea saw and fled. The extra psalm returns the first aliyah's Judah and the first aliyah's King, and it returns them as exodus, not as mood. The affliction of Yom Kippur is not Egypt. It is a chosen withholding. The difference is the whole day.

III. Tanya, Middle of Epistle 20: Mitzvot as Root, Inverted Seal, Intention to Do

The daily Tanya remains in the middle of Iggeret HaKodesh, Epistle 20. On 8 Tishrei the letter taught that there is no king without a nation: *malchut* makes a *yesh* that can bow. Today the same letter places the mitzvot in that *malchut* — the final *hei* of the Name — and Torah in *z'eyr anpin*, the *vav*. Both are rooted higher, in *keter*. The mitzvot are rooted in the *gulgalta* of *Arich*, the encompassing "whiteness," the path through which the 613 paths of Torah descend. Torah's root, from the concealed *mochin*, is the wisdom of the reasons of the commandments, to be revealed with Mashiach.

Then the inversion that the ninth day can use without decoration. That which is higher in root descends lower in garment. Mitzvot, superior in *keter*, come to rest in *malchut* and in physical objects. Torah, "lower" relative to that encompassing, comes to rest loftier, in speech and intellect. It is an inverted seal. The beginning is wedged in the end. The final act — a mitzvah done with a body and a thing — was already the beginning of thought.

The Jerusalem Talmud's question about interrupting study for a passing mitzvah is not a technical aside here. The Alter Rebbe reads it as ontology. Commandments are the afterbirth and the root. Torah is the child that lives from that root. "Whoever learns with the intention not to practice — it were better for him that his afterbirth had turned over."

Erev Yom Kippur is a day of bodies and things: a chicken or coins turned nine times, a meal eaten as commanded, water of a *mikveh*, a candle lit for the living and a candle lit for the dead, a mouth that will say *Al Chet*. The letter refuses a piety that would treat all of that as inferior to a thought about teshuvah. The thought without the intention to do is not a higher teshuvah. It is a rootless child.

Charatah itself is a deed of the heart that must become speech and then conduct. *Kabbalah al ha'atid* is not a feeling scheduled for Kol Nidrei. It is the intention to practice that today's Tanya requires of today's learning. A man who learns the ninth's portions as atmosphere for the fast, and does not intend a changed act, has been described already. The afterbirth has turned.

IV. Rambam: Vessels That Hold, a House That Forfeits, Impurity of Death

The three-chapter cycle opens Hilchot Kelim 3–5. A vessel is defined by form and use: mouth, sides, receptacle. Some contract impurity from their inside, some from their outside. Breaks and cracks change status. Purification of what can be purified is by immersion.

The ninth day does not need to force a mashal onto the *halachah*. The *halachah* is already the day's work. A soul is being asked whether it is still a vessel — whether it has a mouth that receives, sides that hold, a use that is not only display. *Mikveh* on Erev Yom Kippur is not a gesture. It is Kelim in the body. What can be immersed must be immersed. What is broken past receptacle is no longer the same object. Teshuvah is not the claim that nothing broke. It is the work by which a vessel becomes a vessel again.

The one-chapter cycle is Hilchot Ishut 24. The Rambam treats marriages that cannot stand, and the forfeiture of *ketubah* where *dat Moshe* or *dat Yehudit* has been violated, or where *mi'un*, adultery, or scandal has dissolved the claim. The chapter is sober. It is not a sermon about women. It is a law of covenant inside a house: a bond has terms; some breaches end support; some statuses were never a marriage that could bear fruit.

Read with the restraint the text deserves. Erev Yom Kippur is a day of household covenant. Ask forgiveness of those one has wounded. Do not enter the fast with a *ketubah* of the heart already torn and unnamed. The Rambam's chapter is a warning against two opposite sentimentalities: that every bond must be maintained no matter what it has become, and that a bond can be discarded without law. Limited power under higher law governs a kitchen as surely as a camp.

Sefer HaMitzvot records Positive Commandment 107: we are commanded concerning the impurity contracted from a human corpse. The contact is real. The law that follows the contact is real. Erev Yom Kippur stands one night before a day that the Torah calls a death of sorts — *innuy*, the withholding of life's ordinary supports — and one night after a year in which actual death has not been a metaphor. *Tum'at met* is not the theme of the feast. It is the honesty that the feast is not denial. The ninth eats. The tenth withholds. Both are before the Living G-d. Yizkor on Yom Kippur is the same honesty in the *machzor*. Light the candle before the holiday lights.

V. Hayom Yom, Tishrei 9: Nine Circles, No Tachanun, Two Avodot

Hayom Yom for the ninth of Tishrei, Erev Yom Kippur, is short enough to be memorized and large enough to hold the day.

Kaparot: the verses from *Bnei adam* through *ul'shalom* are said three times. At each reading the fowl — or the coins — is turned around the head three times. Nine rotations in all.

Until the end of Tishrei, no *tachanun* is said.

Malkot: the one who administers and the one who receives both recite *V'hu rachum* three times.

Then the sentence that organizes the hinge: on Erev Yom Kippur the avodah is remorse for the past; on Yom Kippur — resolve for the future.

The nine rotations are not theater. They are a body being taught that substitution is asked, and that the asker remains. "This is my exchange, this is my replacement, this is my atonement." The poor receive the value. A rite that circled and then kept the value would have missed the law of the day.

No *tachanun* through the end of Tishrei is not a vacation from confession. Confession moves into *Al Chet*, into Vidui of Yom Kippur, into the posture of a month that has crossed from plea to seal and then to the joy of the festival. The ninth already stands on that side of the hinge in one respect: the daily falling-on-the-face is suspended because the day itself is holy toward the tenth.

Malkot with *V'hu rachum* in both mouths refuses a theater of punishment. The one who strikes and the one who is struck say the same verse. Mercy is not the property of the administrator.

The last line is the day's learned core. *Charatah* and *kabbalah* are not synonyms. Remorse without resolve is a wound that prefers itself to healing. Resolve without remorse is a program that has not told the truth. The Frierdiker Rebbe, as arranged here by the Rebbe, assigns the two to two days so that neither will swallow the other. Sundown is the seam. The feast belongs to remorse that is already turning. The fast belongs to resolve that has not skipped the feast's truth.

Classical approaches divide along familiar lines and meet at that seam. Rambam in Hilchot Teshuvah requires confession in speech, remorse, and commitment not to return to the sin; the three are one *teshuvah*, not three decorations. Rabbeinu Yonah dwells in the labor of *charatah* until the heart is actually sick of the act. The Zohar and later Chassidus insist that Yom Kippur itself does work that the individual cannot complete alone — *kippurim* as gift, *mikveh* of the day, the drawing of a higher *ratzon*. The Hayom Yom line does not choose a camp. It sequences them. On the ninth, tell the truth about the past. On the tenth, bind the future. The gift of the tenth does not cancel the speech of the ninth. The speech of the ninth does not replace the gift of the tenth.

VI. Approaches and a Constructive Synthesis

One approach hears Vezot Haberacha as the soft ending after Haazinu's hardness: blessing as consolation. Another hears it as jurisprudence: tribes receive distinct charges under one King. A third, Chassidic, hears the opening "and this" as continuation — the song and the blessing are one Torah, warning and gift from one mouth.

On kingship, Sifrei's two readings should both be kept. His yoke is always upon them; and, His kingship is revealed when they gather as one. The first protects the day from the fantasy that unity creates G-d. The second protects the day from the fantasy that a private piety is already Jeshurun.

On Reuben and Judah, peshat is confession that restores a name to the count. Derash is the pair of brothers whose mouths told the truth and whose bones, in Judah's case, had to be gathered. Sod, for a ninth of Tishrei, is simple enough: live and not die; hear the voice; bring him to his people.

On Tanya, one may emphasize the superiority of deed or the interior of Torah. The inverted seal refuses the quarrel. Deed is higher in root and lower in garment. Learning that intends no deed has lost the root. Deed with no Torah has lost the child. Erev Yom Kippur needs both at the table.

Synthesis for the season is practical. The King who came toward Sinai is the King seated in Tishrei. The inheritance is still an inheritance. The congregation still has to gather. Remorse is today's assigned labor. Resolve is the threshold of Kol Nidrei and the work of Yom Kippur. Vessels can be immersed. Houses have terms. Death is real, and so is the bundle of life in which the holy ones are held. None of this requires a geopolitical frame. Where covenantal republican speech is honest, it is only this: no king without a gathered people; no liberty without a law that was not invented this morning; no consent worth the name without the freedom to have refused, and the freedom to return.

VII. Practical Avodah

One assigned labor for the daylight of the ninth, before the hinge.

Sit once, without an audience. Name one act or pattern from the year in a sentence short enough to be true. That is *charatah*. Do not improve the sentence into a speech. Do not publish it.

Then write one concrete *kabbalah* for the year that is about to be sealed — small enough to keep, large enough to cost. Place it where the fast can see it. Do not begin performing it as identity. Yom Kippur is the day of resolve. Today is the day the resolve is made honest by the truth that precedes it.

Ask one person for *lekach*, or give it. Eat the second meal as commanded, not as anxiety. Immerse if that is your practice. Light the long candle. Light the Yizkor candle before the holiday lights. Leave for Kol Nidrei with one person forgiven whom you could have left unforgiven until after the fast.

VIII. Chinuch / Family

For the table, before the afternoon fades.

- Moses blessed close to his death. Rashi: if not now, when? Ask the children: what blessing can still be said today, before the fast?
- Reuben is told, live and not die. The firstborn who failed is still counted. A child who has failed this week is still at the table.
- Judah's verse: hear the voice; bring him to his people; his hands will contend; You be the help. Hands and help in one sentence. Children can learn both without a lecture.
- Hayom Yom in a line they can carry: on Erev Yom Kippur we tell the truth about what was. On Yom Kippur we take on what will be.
- The ninth is a feast that counts as a fast. Obedience can look like a full plate. That fact alone is worth a short conversation.

Keep it short. The day is already full. Protect the hours before Kol Nidrei as family hours, not as production.

IX. Covenantal-Republican Resonance (Only Where the Text Already Speaks)

- **King in Jeshurun when gathered:** sovereignty revealed in assembled heads and united tribes, not in a man who cannot be gathered to. Non-domination is the practical face of a King who does not need strife in order to exist, and will not be revealed in it.
- **Torah as *morashah* of a congregation:** higher law as inheritance, not as the will of whoever presently holds office. Consent is real because refusal was real at Seir and Paran, and because taking-hold remains a deed.
- **Confession that keeps the count:** Reuben and Judah. A civic order that cannot tell the truth about its firstborn and still number him is not strong. It is brittle.
- **Hands and help:** 33:7. Agency without the fantasy of self-sufficiency. Limited power under a Helper who remains G-d.
- **Charatah, then kabbalah:** free will as the ground of both honest memory and bound future. A people that will not remember cannot resolve. A people that will not resolve has remembered only to perform the memory.

Do not press these into a news cycle. The ninth is not a podium.

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Leshana tovah tikatev veteichatem. G'mar chatimah tovah.

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